

## 25STCV07390 25STCV07390

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NATURE OF PROCEEDINGS: Hearing on Demurrer

The Demurrer to the second cause of action is overruled. The Demurrer to the seventh cause of action is sustained with 20 days leave to amend.

### BACKGROUND

Plaintiff Ariel Long (Plaintiff) sued her former employer, Kaneka Medical America, LLC (Kaneka), its Executive Vice President, Kiminori Toda (Toda), and its Director of U.S. Sales, Dennis Mitchell (Mitchell). She alleges that Kaneka maintained a workplace culture hostile to women that intensified after Toda became Executive Vice President, resulting in her exclusion from meetings, demotion, and termination.

The causes of action in the First Amended Complaint (FAC) are: (1) Discrimination in Violation of the Fair Employment and Housing Act (FEHA); (2) Harassment in Violation of FEHA; (3) Retaliation in Violation of FEHA; (4) Failure to Prevent Discrimination, Harassment and Retaliation; (5) Failure to Accommodate Disability in Violation of FEHA; (6) Failure to Engage in the Interactive Process in Violation of FEHA; (7) Intentional Infliction of Emotional Distress (IIED); (8) Whistleblower Retaliation in Violation of Labor Code section 1102.5; and (9) Wrongful Termination in Violation of Public Policy.

Kaneka and Toda (collectively, "Defendants") filed a Demurrer. Plaintiff filed an Opposition.

The Court previously granted a Motion for Judgment on the Pleadings as to

the second and seventh causes of action against Toda the original Complaint, with leave to amend.

## REQUEST FOR JUDICIAL NOTICE

Defendants request judicial notice of the FAC, the original Complaint, the notice of the Court's tentative ruling on the prior motion and the ruling itself, and Plaintiff's opposition to that motion with her counsel's declaration (Exs. A-E). The unopposed request is granted as to the existence and legal effect of each record, not the truth of its contents. (Evid. Code, §§ 452, subd. (d), 453.)

## LEGAL STANDARD

A demurrer tests whether the pleading states facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) Courts read the allegations liberally (*Wilson v. Transit Authority of City of Sacramento* (1962) 199 Cal.App.2d 716, 720-721) and assume the truth of properly pleaded facts, but not deductions, contentions, or conclusions of law or fact (*Stonehouse Homes LLC v. City of Sierra Madre* (2008) 167 Cal.App.4th 531, 538). "[T]he complaint ordinarily is sufficient if it alleges ultimate rather than evidentiary facts." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (*Doe*).)

## ANALYSIS

Defendants demur to the second cause of action for harassment in violation of FEHA and the seventh cause of action for IIED.

### I. Harassment

Toda contends that Plaintiff does not allege that he instructed Robert Abrams (Abrams) to relay the "demure and silent" remark to her, and that attributing the remark to him is speculation. He adds that (1) the allegations about Rhodesia Lindsay (Lindsay) and Yuki Arimoto (Arimoto) are opinions or conclusions; (2) the remaining conduct is personnel management; (3) the conduct is not severe or pervasive; and (4) the FAC omits facts Plaintiff's counsel represented she would plead.

A harassment plaintiff must allege, among other elements, unwelcome

harassment based on a protected characteristic that created a hostile work environment. (Thompson v. City of Monrovia (2010) 186 Cal.App.4th 860, 876.) An employee “is personally liable for any harassment prohibited by this section that is perpetrated by the employee.” (Gov. Code, § 12940, subd. (j)(3).)

“[D]iscrimination refers to bias in the exercise of official actions on behalf of the employer, and harassment refers to bias that is expressed or communicated through interpersonal relations in the workplace.” (Roby v. McKesson Corp. (2009) 47 Cal.4th 686, 707 (Roby).) Personnel management, including “deciding who will and who will not attend meetings,” is not harassment, even if it is discriminatory. (Janken v. GM Hughes Electronics (1996) 46 Cal.App.4th 55, 64-65 (Janken).) Official actions may nonetheless bear on a harassment claim when they “establish a widespread pattern of bias.” (Roby, supra, 47 Cal.4th at p. 709.) In Roby, the supervisor “ignored Roby at staff meetings.” (Id. at p. 695.) The court treated that shunning, with the supervisor’s belittling of the plaintiff’s job and reprimands in front of coworkers, as official actions that “may have contributed to the hostile message that [the supervisor] was expressing to Roby in other, more explicit ways.” (Id. at p. 709.) The harassing acts included the supervisor’s “refusal to respond to Roby’s greetings.” (Ibid.)

Here, Plaintiff sufficiently alleges that Toda directed his message to her. Standing alone, the allegation that Toda told Abrams he did not appreciate Plaintiff speaking in meetings because “she was a woman and in Japanese culture, women are demure and silent,” and that Abrams then told her (FAC, ¶ 15), does not allege that Toda told Abrams to relay the remark. However, Plaintiff alleges more. First, she alleges that Toda “expressly and repeatedly communicated this hostile message to [Plaintiff] through Mr. Abrams and other managers,” including Lindsay, Kaneka’s Director of Human Resources, and Arimoto, “who conveyed it to [Plaintiff].” She alleges that his comments included that she and other female employees “needed to subscribe to Japanese cultural gender norms and be more demure, stay quiet and silent during meetings, not talk so much, and be subservient.” (FAC, ¶ 16.) Read together, paragraphs 15 and 16 allege that the message the managers conveyed was the gender-based message those paragraphs describe. Second, she alleges that after Toda became Executive Vice President, he continued to communicate to female employees, including Plaintiff, that they “were expected to remain demure, silent, and subservient in the workplace.” (FAC, ¶ 18.) Finally, she alleges that Abrams’s recurring reminders that she worked at “the pleasure of the

Japanese” “were made at Mr. Toda’s direction” and conveyed that her continued employment depended on her subordination to “Japanese cultural gender norms.” (FAC, ¶ 21.) Although that remark refers on its face to national origin, the Court accepts Plaintiff’s allegation of its meaning at the pleading stage.

These allegations are not conclusions or speculation. Plaintiff identifies what Toda said, who delivered the message, and to whom. Those are ultimate facts. (Doe, supra, 42 Cal.4th at p. 550.) She alleges that Lindsay and Arimoto were managers through whom Toda sent his message, not witnesses to his motives. Taken as true, the allegations describe harassment “perpetrated by” Toda, even though others spoke the words. (Gov. Code, § 12940, subd. (j)(3).) That he never addressed a derogatory remark to Plaintiff directly does not defeat the claim.

As to personnel management, Plaintiff concedes that the restructuring, her demotion, the denial of her bonus and promotion, and her placement in a new department are official actions that do not support the harassment claim. (Opp., at p. 12:18-21.) Her exclusion from meetings is the same kind of personnel decision and likewise does not support the claim. (Janken, supra, 46 Cal.App.4th at p. 65.) However, Plaintiff also alleges that Toda dismissed and ignored her, conveying “open humiliation in front of colleagues.” (FAC, ¶ 16.) That conduct concerns how Toda treated Plaintiff, not whether she attended a meeting. It resembles the shunning in Roby, which the court counted among the evidence sufficient to support the harassment verdict. (Roby, supra, 47 Cal.4th at pp. 709-710.) At a minimum, it corroborates the explicit gender-based message Plaintiff alleges. Whether it would independently support the claim is a future question.

Finally, the allegations suffice as to severity or pervasiveness. Whether a hostile work environment exists “depends upon the totality of the circumstances.” (Gov. Code, § 12923, subd. (c).) Plaintiff alleges that Kaneka’s Executive Vice President repeatedly told her, through three managers, that as a woman she must be demure, silent, and subservient, from early 2023 through the months after her complaint to Human Resources and before her August 2024 termination. (FAC, ¶¶ 15-16, 18, 20-21, 25.) Whether that conduct altered the conditions of her employment is a question for a later stage.

Accordingly, the Demurrer to the second cause of action is overruled as to Toda.

## II. IIED

Toda contends that the conduct alleged is personnel management, which is not outrageous as a matter of law, and that he made no remarks to Plaintiff directly. He adds that the FAC alleges no facts showing severe emotional distress, including the symptoms, treatment, and duration her counsel's declaration represented she would plead.

The elements of IIED are (1) extreme and outrageous conduct by the defendant, intended to cause emotional distress or in reckless disregard of that probability; (2) severe or extreme emotional distress; and (3) causation. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903 (*Christensen*)). The conduct must be "directed at the plaintiff, or occur in the presence of a plaintiff of whom the defendant is aware." (*Ibid.*) "A simple pleading of personnel management activity is insufficient to support a claim of intentional infliction of emotional distress, even if improper motivation is alleged." (*Janken, supra*, 46 Cal.App.4th at p. 80.) However, "[a]lthough it may be that mere insulting language, without more, ordinarily would not constitute extreme outrage, the aggravated circumstances alleged by plaintiff seem sufficient to uphold his complaint as against defendants' general demurrer." (*Alcorn v. Anbro Engineering, Inc.* (1970) 2 Cal.3d 493, 499, fn. omitted (*Alcorn*)). Those circumstances included that the defendants stood "in a position or relation of authority over plaintiff." (*Id.* at p. 498.) Conduct may be outrageous where the defendant "abuses a relation or position which gives him power to damage the plaintiff's interest." (*Smith v. BP Lubricants USA Inc.* (2021) 64 Cal.App.5th 138, 147 (*Smith*)). "Where reasonable men may differ," outrageousness is for the jury. (*Alcorn, supra*, 2 Cal.3d at p. 499.)

Defendants argue that workers' compensation exclusivity bars the claim. In *Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 161 (*Yau*), the court held that "[e]motional injuries caused by workplace discipline, including termination, fall within" the exclusivity rule. In *Light v. Department of Parks & Recreation* (2017) 14 Cal.App.5th 75 (*Light*), the court declined to follow *Yau*, noting that it "did not squarely consider a claim for intentional infliction of emotional distress based on FEHA retaliation or discrimination." (*Id.* at p. 100, fn. 9.) Relying on authority that " '[n]either discrimination nor harassment is a normal incident of employment,' " *Light* held that IIED claims based on FEHA discrimination and retaliation "are not subject to workers' compensation

exclusivity.” (Id. at pp. 100-101, quoting *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288.)

To the extent the cases conflict, the Court finds *Light* more persuasive, because it addressed an IIED claim predicated on FEHA violations and *Yau* did not. (See *Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 456 [where appellate decisions conflict, the trial court “can and must make a choice between the conflicting decisions”].)

Here, exclusivity does not bar the claim. Plaintiff sufficiently alleges FEHA harassment by *Toda* and predicates the seventh cause of action on it. (FAC, ¶ 70.) The *Light* court applied its rule to reverse summary adjudication of an IIED claim against an individual supervisor. (*Light*, supra, 14 Cal.App.5th at p. 102.)

Moreover, reasonable persons could differ on whether the conduct alleged is outrageous. First, Plaintiff alleges more than insulting language. She alleges a repeated gender-based message that her continued employment “was contingent on her subordination to Japanese cultural gender norms, as Mr. *Toda* had defined them.” (FAC, ¶¶ 18, 21.) Second, the conduct was directed at Plaintiff. Managers conveyed the message to her, and *Toda* dismissed and ignored her, conveying “open humiliation in front of colleagues.” (FAC, ¶ 16; *Christensen*, supra, 54 Cal.3d at p. 903.) Third, as *Kaneka*’s Executive Vice President, *Toda* held authority over her position. (FAC, ¶¶ 2, 18-19; *Alcorn*, supra, 2 Cal.3d at p. 498; *Smith*, supra, 64 Cal.App.5th at p. 147.) Finally, the conduct allegedly began in early 2023 and continued after her complaint to Human Resources. (FAC, ¶¶ 15, 20-21.)

Nevertheless, Plaintiff insufficiently alleges severe emotional distress. Although ultimate facts ordinarily suffice (*Doe*, supra, 42 Cal.4th at p. 550), an IIED claim fails where the plaintiff alleges severe distress without facts showing its nature or extent. In *Bogard v. Employers Casualty Co.* (1985) 164 Cal.App.3d 602, 617, the claim failed despite outrageous conduct because, “[a]lthough appellants alleged they suffered severe emotional distress, they failed to set forth any facts which indicate the nature or extent of any mental suffering incurred . . . .” Likewise, an allegation of “shame, humiliation and embarrassment without further factual explanation does not meet the requirement of specificity called for in *Bogard*.” (*Pitman v. City of Oakland* (1988) 197 Cal.App.3d 1037, 1047.) Labeling the distress “severe” does not cure the omission. In *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227 (*Angie M.*), the court rejected the plaintiff’s contention that “her only pleading error was that she simply failed to call her

emotional distress severe,” because she had “pleaded no facts demonstrating the nature, extent or duration of her alleged emotional distress.” Here, Plaintiff alleges that she “has suffered and continues to suffer severe emotional distress,” including “humiliation, emotional distress, and a mental and physical pain and anguish.” (FAC, ¶¶ 70-72.) She alleges no facts describing its nature or extent of this emotional distress. Thus, the FAC does not allege the second element.

Defendants contend that the FAC omits facts Plaintiff’s counsel declared she was prepared to plead, including the symptoms, treatment, and duration of her distress. (Dem., at pp. 5:7-6:4, 10:22-11:2.) Assuming the declaration made that representation, it does not change the pleading standard for either cause of action. The question on demurrer is whether the FAC states a claim.

Defendants also contend that leave to amend should be denied because the FAC was untimely, because 483 days have passed since the Complaint was filed, and because Plaintiff’s discovery responses add nothing to her allegations. (Dem., at p. 11:4-20.) None of these warrants denying leave. The Court granted the parties’ stipulation permitting Plaintiff to file the FAC. The remaining objections rely on the time elapsed and on assertions about discovery outside the pleading, and neither shows that Plaintiff cannot allege the nature and extent of her distress. As in *Angie M.*, that deficiency appears “easily corrected.” (*Angie M.*, supra, 37 Cal.App.4th at p. 1227.)

Accordingly, the Demurrer to the seventh cause of action is sustained as to Toda with 20 days leave to amend.

### III. Kaneka

Kaneka demurs to both causes of action as well. The rulings above therefore govern the Demurrer as to Kaneka.

An employer is strictly liable for harassment by a supervisor. (*State Dept. of Health Services v. Superior Court* (2003) 31 Cal.4th 1026, 1040-1041; see Gov. Code, § 12940, subd. (j)(1).) Because Plaintiff sufficiently alleges harassment by Toda, Kaneka’s Executive Vice President, the second cause of action states a claim against Kaneka. The failure to allege severe emotional distress defeats the seventh cause of action against Kaneka for the same reason it does against Toda.

Plaintiff argues that Code of Civil Procedure section 430.41, subdivision (b) bars Kaneka's Demurrer because Kaneka answered the original Complaint. (Opp., at p. 8 fn. 2.) However, the subdivision governs "[a] party demurring to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained." (Code Civ. Proc., § 430.41, subd. (b).) No demurrer to the original Complaint was sustained.

Accordingly, the Demurrer to the second cause of action is overruled as to Kaneka, and the Demurrer to the seventh cause of action is sustained as to Kaneka with 20 days leave to amend. The Court does not reach Plaintiff's race and national origin argument or Defendants' reply that the theory is neither pleaded nor exhausted.

## CONCLUSION

The Demurrer to the second cause of action is overruled. The Demurrer to the seventh cause of action is sustained with 20 days leave to amend.